Companies House

CS01 (ef)

Confirmation Statement

Company Name: **CHERRYZ LTD**
Company Number: **10588109**

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Company Name: **CHERRYZ LTD**

Company Number: **10588109**

Confirmation Statement date: **26/01/2022**

Statement of Capital (Share Capital)

Class of Shares:	**DEFERRED**	Number allotted	**16671**
Currency:	**GBP**	Aggregate nominal value:	**16.671**

Prescribed particulars

THE DEFERRED SHARES SHALL NOT ENTITLE THE HOLDERS OF THEM TO RECEIVE NOTICE OF, TO ATTEND, TO SPEAK OR TO VOTE AT ANY GENERAL MEETING OF THE COMPANY, NOR TO RECEIVE, VOTE ON OR OTHERWISE CONSTITUTE AN ELIGIBLE MEMBER FOR THE PURPOSES OF PROPOSED WRITTEN RESOLUTIONS OF THE COMPANY. NO DEFERRED SHARE SHALL HAVE ANY ENTITLEMENT TO A DIVIDEND. ON A DISTRIBUTION OF ASSETS ON A LIQUIDATION OR A RETURN OF CAPITAL (OTHER THAN A CONVERSION, REDEMPTION OR PURCHASE OF SHARES) THE SURPLUS ASSETS OF THE COMPANY REMAINING AFTER PAYMENT OF ITS LIABILITIES SHALL BE APPLIED (TO THE EXTENT THAT THE COMPANY IS LAWFULLY PERMITTED TO DO SO): (A) FIRST IN PAYING TO EACH OF THE HOLDERS OF SERIES A PREFERRED SHARES, IN PRIORITY TO ANY OTHER CLASSES OF SHARES, A SUM EQUAL TO THE HIGHER OF: (I) AN AMOUNT PER SERIES A PREFERRED SHARE HELD EQUAL TO THE AMOUNT PAID UP OR CREDITED AS PAID UP (INCLUDING PREMIUM) FOR SUCH SHARE (PROVIDED THAT IF THERE ARE INSUFFICIENT SURPLUS ASSETS TO PAY THE AMOUNTS PER SERIES A PREFERRED SHARE EQUAL TO THE AMOUNT PAID UP OR CREDITED AS PAID UP (INCLUDING PREMIUM), THE REMAINING SURPLUS ASSETS SHALL BE DISTRIBUTED TO THE HOLDERS OF SERIES A PREFERRED SHARES PRO RATA TO THE AMOUNTS PAID UP ON THE SERIES A PREFERRED SHARES); AND (II) AN AMOUNT PER SERIES A PREFERRED SHARE EQUAL TO THE AMOUNT PER SHARE TO WHICH THE SERIES A PREFERRED SHARES WOULD BE ENTITLED IF THE SERIES A PREFERRED SHARES WERE CONVERTED INTO ORDINARY SHARES IN ACCORDANCE WITH THE COMPANY'S ARTICLES OF ASSOCIATION AND THE SURPLUS ASSETS WERE DISTRIBUTED AMONG ALL HOLDERS OF SHARES OTHER THAN THE DEFERRED SHARES PRO RATA TO THE NUMBER OF SHARES OTHER THAN THE DEFERRED SHARES HELD; (B) SECOND IN PAYING TO THE HOLDERS OF THE DEFERRED SHARES, IF ANY, A TOTAL OF £1.00 FOR THE ENTIRE CLASS OF DEFERRED SHARES (WHICH PAYMENT SHALL BE DEEMED SATISFIED BY PAYMENT TO ANY ONE HOLDER OF DEFERRED SHARES). SUBJECT TO THE COMPANIES ACT 2006, ANY DEFERRED SHARES MAY BE PURCHASED OR (IN THE CASE OF SHARES ISSUED AS REDEEMABLE SHARES) REDEEMED BY THE COMPANY AT ANY TIME AT ITS OPTION FOR ONE PENNY FOR ALL THE DEFERRED SHARES REGISTERED IN THE NAME OF ANY HOLDER(S) WITHOUT OBTAINING THE SANCTION OF THE HOLDER(S).

Class of Shares:	**ORDINARY**	Number allotted	**116301**
Currency:	**GBP**	Aggregate nominal value:	**116.301**

Prescribed particulars

THE ORDINARY SHARES SHALL CONFER ON EACH HOLDER THE RIGHT TO RECEIVE NOTICE OF AND TO ATTEND, SPEAK AND VOTE AT ALL GENERAL MEETINGS OF THE COMPANY AND TO RECEIVE AND VOTE ON PROPOSED WRITTEN RESOLUTIONS OF THE COMPANY. EACH ORDINARY SHARE IS ENTITLED TO ONE VOTE IN ANY CIRCUMSTANCES. EACH ORDINARY SHARE IS ENTITLED PARI PASSU TO DIVIDEND PAYMENTS. ON A DISTRIBUTION OF ASSETS ON A LIQUIDATION OR A RETURN OF CAPITAL (OTHER THAN A CONVERSION, REDEMPTION OR PURCHASE OF SHARES) THE SURPLUS ASSETS OF THE COMPANY REMAINING AFTER PAYMENT OF ITS LIABILITIES SHALL BE APPLIED (TO THE EXTENT THAT THE COMPANY IS LAWFULLY PERMITTED TO DO SO): (A) FIRST IN PAYING TO EACH OF THE HOLDERS OF SERIES A PREFERRED SHARES, IN PRIORITY TO ANY OTHER CLASSES OF SHARES, A SUM EQUAL TO THE HIGHER OF: (I) AN AMOUNT PER SERIES A PREFERRED SHARE HELD EQUAL TO THE AMOUNT PAID UP OR CREDITED AS PAID UP (INCLUDING PREMIUM) FOR SUCH SHARE (PROVIDED THAT IF THERE ARE INSUFFICIENT SURPLUS ASSETS TO PAY THE AMOUNTS PER SERIES A PREFERRED SHARE EQUAL TO THE AMOUNT PAID UP OR CREDITED AS PAID UP (INCLUDING PREMIUM), THE REMAINING SURPLUS ASSETS SHALL BE DISTRIBUTED TO THE HOLDERS OF SERIES A PREFERRED SHARES PRO RATA TO THE AMOUNTS PAID UP ON THE SERIES A PREFERRED SHARES); AND (II) AN AMOUNT PER SERIES A PREFERRED SHARE EQUAL TO THE AMOUNT PER SHARE TO WHICH THE SERIES A PREFERRED SHARES WOULD BE ENTITLED IF THE SERIES A PREFERRED SHARES WERE CONVERTED INTO ORDINARY SHARES IN ACCORDANCE WITH THE COMPANY'S ARTICLES OF ASSOCIATION AND THE SURPLUS ASSETS WERE DISTRIBUTED AMONG ALL HOLDERS OF SHARES OTHER THAN THE DEFERRED SHARES PRO RATA TO THE NUMBER OF SHARES OTHER THAN THE DEFERRED SHARES HELD; (B) SECOND IN PAYING TO THE HOLDERS OF THE DEFERRED SHARES, IF ANY, A TOTAL OF £1.00 FOR THE ENTIRE CLASS OF DEFERRED SHARES (WHICH PAYMENT SHALL BE DEEMED SATISFIED BY PAYMENT TO ANY ONE HOLDER OF DEFERRED SHARES); AND (C) THE BALANCE OF THE SURPLUS ASSETS (IF ANY) SHALL BE DISTRIBUTED AMONG THE HOLDERS OF ORDINARY SHARES PRO RATA TO THE NUMBER OF ORDINARY SHARES HELD. THE ORDINARY SHARES ARE NOT REDEEMABLE OR LIABLE TO BE REDEEMED AT THE OPTION OF THE COMPANY OR THE HOLDER.

Class of Shares:	**SERIES A PREFERRED**	Number allotted	**67033**
		Aggregate nominal value:	**67.033**
Currency:	**GBP**		

Prescribed particulars

THE SERIES A PREFERRED SHARES SHALL CONFER ON EACH HOLDER THE RIGHT TO RECEIVE NOTICE OF AND TO ATTEND, SPEAK AND VOTE AT ALL GENERAL MEETINGS OF THE COMPANY AND TO RECEIVE AND VOTE ON PROPOSED WRITTEN RESOLUTIONS OF THE COMPANY. EACH SERIES A PREFERRED SHARE IS ENTITLED TO ONE VOTE IN ANY CIRCUMSTANCES. EACH SERIES A PREFERRED SHARE IS ENTITLED PARI PASSU TO DIVIDEND PAYMENTS. ON A DISTRIBUTION OF ASSETS ON A LIQUIDATION OR A RETURN OF CAPITAL (OTHER THAN A CONVERSION, REDEMPTION OR PURCHASE OF SHARES) THE SURPLUS ASSETS OF THE COMPANY REMAINING AFTER PAYMENT OF ITS LIABILITIES SHALL BE APPLIED (TO THE EXTENT THAT THE COMPANY IS LAWFULLY PERMITTED TO DO SO): FIRST IN PAYING TO EACH OF THE HOLDERS OF SERIES A PREFERRED SHARES, IN PRIORITY TO ANY OTHER CLASSES OF SHARES, A SUM EQUAL TO THE HIGHER OF: (I) AN AMOUNT PER SERIES A PREFERRED SHARE HELD EQUAL TO THE AMOUNT PAID UP OR CREDITED AS PAID UP (INCLUDING PREMIUM) FOR SUCH SHARE (PROVIDED THAT IF THERE ARE INSUFFICIENT SURPLUS ASSETS TO PAY THE AMOUNTS PER SERIES A PREFERRED SHARE EQUAL TO THE AMOUNT PAID UP OR CREDITED AS PAID UP (INCLUDING PREMIUM), THE REMAINING SURPLUS ASSETS SHALL BE DISTRIBUTED TO THE HOLDERS OF SERIES A PREFERRED SHARES PRO RATA TO THE AMOUNTS PAID UP ON THE SERIES A PREFERRED SHARES); AND (II) AN AMOUNT PER SERIES A PREFERRED SHARE EQUAL TO THE AMOUNT PER SHARE TO WHICH THE SERIES A PREFERRED SHARES WOULD BE ENTITLED IF THE SERIES A PREFERRED SHARES WERE CONVERTED INTO ORDINARY SHARES IN ACCORDANCE WITH THE COMPANY'S ARTICLES OF ASSOCIATION AND THE SURPLUS ASSETS WERE DISTRIBUTED AMONG ALL HOLDERS OF SHARES OTHER THAN THE DEFERRED SHARES PRO RATA TO THE NUMBER OF SHARES OTHER THAN THE DEFERRED SHARES HELD. THE SERIES A PREFERRED SHARES ARE NOT REDEEMABLE OR LIABLE TO BE REDEEMED AT THE OPTION OF THE COMPANY OR THE HOLDER.

Statement of Capital (Totals)

Currency:	**GBP**	Total number of shares:	**200005**

Total aggregate nominal value:	**200.005**
Total aggregate amount unpaid:	**0**

Full details of Shareholders

The details below relate to individuals/corporate bodies that were shareholders during the review period or that had ceased to be shareholders since the date of the previous confirmation statement.

Shareholder information for a non-traded company as at the confirmation statement date is shown below

Shareholding 1:	**700 ORDINARY shares held as at the date of this confirmation statement**
Name:	**JONAS MARTIN BABICS**
Shareholding 2:	**41641 SERIES A PREFERRED shares held as at the date of this confirmation statement**
Name:	**BALDERTON CAPITAL VII, S.L.P.**
Shareholding 3:	**313 transferred on 2021-02-18** **187 transferred on 2021-02-18** **2350 ORDINARY shares held as at the date of this confirmation statement**
Name:	**BLE CAPITAL GMBH**
Shareholding 4:	**14613 ORDINARY shares held as at the date of this confirmation statement**
Name:	**FPGP NOMINEES LIMITED**
Shareholding 5:	**5949 SERIES A PREFERRED shares held as at the date of this confirmation statement**
Name:	**FPGP NOMINEES LIMITED**
Shareholding 6:	**312 transferred on 2021-02-18** **188 transferred on 2021-02-18** **2350 ORDINARY shares held as at the date of this confirmation statement**
Name:	**H3 CAPITAL GMBH**
Shareholding 7:	**7307 ORDINARY shares held as at the date of this confirmation statement**
Name:	**HEARTCORE CAPITAL FUND III K/S**
Shareholding 8:	**5440 SERIES A PREFERRED shares held as at the date of this confirmation statement**
Name:	**HEARTCORE CAPITAL FUND III K/S**
Shareholding 9:	**365 ORDINARY shares held as at the date of this confirmation statement**
Name:	**CEDRIC KÖHLER**
Shareholding 10:	**1734 ORDINARY shares held as at the date of this confirmation statement**
Name:	**NIKOLAUS FELIX CHRISTIAN LACHNER**

Shareholding 11:	**3711 transferred on 2021-02-18** **2226 transferred on 2021-02-18** **0 ORDINARY shares held as at the date of this confirmation statement**
Name:	**FELIX ALBRECHT LEUSCHNER**
Shareholding 12:	**16671 DEFERRED shares held as at the date of this confirmation statement**
Name:	**CHRISTIAN MEYER-OHLENDORF**
Shareholding 13:	**27607 ORDINARY shares held as at the date of this confirmation statement**
Name:	**CHRISTIAN MEYER-OHLENDORF**
Shareholding 14:	**12860 ORDINARY shares held as at the date of this confirmation statement**
Name:	**PARTECH ENTREPRENEUR FUND III FPCI**
Shareholding 15:	**7800 SERIES A PREFERRED shares held as at the date of this confirmation statement**
Name:	**PE III CO-INVEST FPCI**
Shareholding 16:	**110 ORDINARY shares held as at the date of this confirmation statement**
Name:	**MARIA CLARA PEREIRA DA ROCHA**
Shareholding 17:	**46013 ORDINARY shares held as at the date of this confirmation statement**
Name:	**ROBERT MARTIN RANDOLPH**
Shareholding 18:	**292 ORDINARY shares held as at the date of this confirmation statement**
Name:	**RANDOM CANYON INVESTMENTS, LLC**
Shareholding 19:	**128 SERIES A PREFERRED shares held as at the date of this confirmation statement**
Name:	**RANDOM CANYON INVESTMENTS, LLC**
Shareholding 20:	**6075 SERIES A PREFERRED shares held as at the date of this confirmation statement**
Name:	**UK FF NOMINEES LIMITED**

Confirmation Statement

I confirm that all information required to be delivered by the company to the registrar in relation to the confirmation period concerned either has been delivered or is being delivered at the same time as the confirmation statement

Authorisation

Authenticated

This form was authorised by one of the following:

Director, Secretary, Person Authorised, Charity Commission Receiver and Manager, CIC Manager, Judicial Factor